

he landed on his head, causing severe and permanent injuries.” (*Id.* at ¶¶27.) Plaintiff alleges Defendants’ conduct, including Smith’s, “constitutes malice, oppression, and/or fraud.” (*Id.* at ¶¶34-36, 95.) “Smith’s conduct was willful, malicious, and designed to harm Plaintiff, and constitutes the type of reprehensible conduct for which punitive damages are appropriate.” (*Id.* at ¶36.) Plaintiff alleges Smith acted reckless and/or with the deliberate intent to harm Plaintiff and is directly liable for the IIED arising from Smith’s extreme and outrageous unprovoked attack. (*Id.* at ¶89.) As to the battery, the FAC alleges Smith intentionally, and unprovoked, assaulted and battered Plaintiff and accelerated his car into the right side of Plaintiff’s body. (*Id.* at ¶¶93-94.)

Taking the allegations as true for purposes of a motion to strike, the FAC, through paragraphs of incorporation, alleges specific factual allegations that Smith acted with oppression, fraud and malice and is therefore not mere legal conclusions. (*Brousseau v. Jarret* (1977) 73 Cal.App.3d 864.) As such, the Court **DENIES** the motion to strike punitive damages.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2500617	LOPEZ vs LOPEZ	MOTION APPLICATION FOR APPOINTMENT OF GUARDIAN AD LITEM

Tentative Ruling:

The Application is denied.